

24VECV04984 24VECV04984

County: los-angeles

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Case Number: 24VECV04984 Hearing Date: July 17, 2026 Dept: NWI

24VECV04984 COURTNEY

FLEMING vs ROXANNE MISTRY, et al.

July 17, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling - Motion to Set Aside

Default (CCP § 473)

I.

Background

On October

10, 2024, Plaintiff Courtney Fleming ("Plaintiff") filed a complaint against Defendants Roxanne Mistry ("Mistry"), RoxxRoxx, LLC ("RoxxRoxx")(collectively "Defendants"), and Does 1 to 50 alleging four causes of action: (1) breach of contract; (2) fraud; (3) breach of fiduciary duty; and (4) conversion.

On March 16, 2026, the Court entered default judgment against Defendants.

On June 2, 2026, Defendants filed the instant motion to set aside default judgment.

On July 6, 2026, Plaintiff filed her opposition.

On July 10, 2026, Defendants filed their reply.

II.

Motion
to Set Aside Default

“A summons is the process by which a court acquires personal jurisdiction over a defendant in a civil action’ [citation], and a defendant has an absolute right to demand that process be issued against him in a manner prescribed by law.” (Mannesmann DeMag, Ltd. v. Superior Court (1985) 172 Cal.App.3d 1118, 1122.) “Constitutional due process requirements are satisfied where the form of service provided and employed is reasonably calculated to give a litigant actual notice of the proceedings and an opportunity to be heard.” (Crescendo Corp. v. Shelted, Inc. (1968) 267 Cal.App.2d 209, 213.) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation.]” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544.)

The Court

may set aside any judgment or order that is void on its face at any time. (Code Civ. Proc. § 473(d); Kremerman v. White (2021) 71 Cal.App.5th 358, 360-70.) “A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll.” [Citation.] This inquiry, however, ‘does not hinge on evidence: A void judgment’s invalidity appears on the face of the record.’ [Citation.]” (Kremerman v. White, supra, 71 Cal.App.5th at p. 370.)

When

considering the facial validity of a judgment, the Court may only consider the contents of the judgment roll. (OC Interior Services, LLC v. Nationstar Mortgage, LLC (2017) 7 Cal.App.5th 1318, 1327 (holding that “[t]o prove that the judgment is void, the party challenging the judgment is limited to the judgment roll, i.e., no extrinsic evidence allowed.”).) “If the invalidity can be shown only through extrinsic evidence, such as declarations

or testimony, the order/judgment is not void on its face. [Citation.]” (Kremerman v. White, supra, 71 Cal.App.5th at p. 370.) If the judgment is not void on its face, the time limitations of Code of Civil Procedure section 473.5 apply. (Trackman v. Kenney (2010) 187 Cal.App.4th 175, 180-81; Schekel v. Resnik (1994) 27 Cal.App.4th Supp. 1, 3-4 (“[t]he Rogers court held that the time limitation set forth in Code of Civil Procedure section 473.5 applies by analogy to motions for relief from default judgment valid on its face but otherwise void for improper service” [citing Rogers v. Silverman (1989) 216 Cal.App.3d 1114, 1124.]).)

III.

Analysis

Requests for Judicial Notice

As a preliminary matter, Plaintiff’s July 6, 2026, requests for judicial notice of various business records, filed with the California Secretary of State, for 2Spirit Tattoo, LLC, 3649 Kanan Road, Agoura Hills, CA 91301, and Atelier Roxx LLC are granted pursuant to Cal. Evid. Code § 452(h).

Discussion

Defendants move to set aside default judgment on the grounds that the March 16, 2026, default judgment is void because Plaintiff failed to effect valid service of the summons and complaint, and the Court therefore lacked personal jurisdiction over Defendants. (See Motion at p. ii.) Specifically, Defendants argue that, on November 13, 2024, an identified tenant at 24955 Pacific Coast Highway in Malibu (the “Malibu address”) informed the process server that Mistry had not opened her business there and was not permitted to do so. (Motion at 1:17-22 [see Mears Decl. Exh. B.]

On November 26, 2024, Plaintiff filed proofs of substituted service stating that the summons and complaint were left for Mistry at the Malibu address with “John Doe – Manager,” with proof reflecting mailing on November 27, 2024. (Ibid.; see Mears Decl. Exh. C.) On January 27, 2025, the summons and complaint were left for RoxxRoxx at 3649 Kanan Road (the “Kanan address”) with “Jane Doe,” identified as an occupant and authorized to accept service, followed by mailing on January 28, 2025. (See Mears Decl. Exh. D.)

Defendants argue that substituted service on an entity requires leaving the summons and complaint during usual office hours at the office of the person to be served, or at that person's usual mailing address, with the person apparently in charge, followed by mailing to the same location. (Motion at 3:19-24 [citing CCP § 415.20].) Defendants argue that leaving service with "Jane Doe" at the Kanan address does not satisfy this requirement. Defendants further argue that service was not effected on Mistry because it was not left at her dwelling house, usual place of abode, usual place of business, or usual mailing address. (Id. at 4:16-27 [citing CCP § 415.20].)

In opposition, Plaintiff argues that the Articles of Organization for 2Spirit Tattoo, LLC identify Mistry as an authorized agent for service of process at the Malibu address. (See Opposition at 2:16-21; see also RJN Exh. 1.) Additionally, 2Spirit Tattoo's Statements of Information identify Mistry as the Chief Executive Officer and the Malibu address as its principal office address, mailing address, and agent-for-service address. (Id. at 2:22-3:4 [RJN Exhs. 2 and 3].) Therefore, Plaintiff argues, the Malibu address constitutes the office of Mistry. (See CCP § 415.20.)

Plaintiff further argues RoxxRoxx was properly served through Mistry, who was identified on the proof of service as RoxxRoxx's Chief Executive Officer. (Opposition at p. 8.) "Deed and title records show that Mistry owned [the Kanan address] at the time of service . . . and Mistry's own Articles of Organization for Atelier Roxx LLC used that same address as the entity's principal office, mailing address, and agent-for-service address." (Id. at 17-21 [citing RJN Exhs. 4-5].) Accordingly, the summons and complaint were served at Mistry's usual mailing address, as Chief Executive Officer of RoxxRoxx, with mailing to the same as required by CCP § 415.20. Contrary to Defendants' argument, CCP § 415.20 does not require identification of the person served so long as they had apparent authority. Additionally, pursuant to Cal. Evid. Code § 647, a registered process server's proof of service is presumed correct.

In reply, Defendants argue that their declarations that these are not their usual address of residence or business rebut the presumption that proof of service was valid. (See Reply at p. 3.) However, to rebut this presumption, Defendants must provide evidence beyond a "mere denial" to support their arguments that service was invalid. Defendants fail to rebut the presumption that service was proper. (Palm Property Investments, LLC v. Yadegar (2011) Cal.App.4th at

1427.)

The Court finds that Plaintiff satisfied the statutory requirements of CCP § 415 et seq., and Defendants fail to provide any actual evidence in rebuttal. Defendants' motion is denied.

IV. Conclusion

Based on the foregoing, Defendant's motion to set aside default is DENIED.

Moving party to give notice.